

JDF 417	Petition to Seal Arrest and Criminal Records No Charges Filed – C.R.S. § 24-72-704
A. Court Type: (ex: County or District) Colorado County: El Paso Court Address:	Existing Case Event Code: MTSL New Case Event Code: PTSR <i>This box is for court use only.</i>
B. Parties to the Case Petitioner (or Defendant): Maria-Alejandra O'Shaughnessy-Whitfield	C. Case Details Number: 2024CR0011882-SUPPLEMENTAL Division/Courtroom:

1. My Information

Name: Date of Birth:

Mailing Address:

City, State, & Zip:

Phone:

Email:

Do you need an interpreter? ☐ No ☒ Yes, in (language) _____

I want to attend court events: ☐ In-person ☒ Virtually (by phone or web video)

To switch your choice:

Use form JDF 76 – General Motion. File at least 48 hours before an event.

2. I am ... (check only one)

- ☐ The Person in Interest. I'm the primary subject of the criminal justice records.
- ☐ The designated representative of the Person in Interest, by power of attorney or notarized authorization.
- ☐ The parent of the Person in Interest, if the Person in Interest is under legal disability.
- ☐ The appointed legal representative of the Person in Interest, if the Person in Interest is under legal disability.

If you are not the person in interest, enter their information below:

Name: _____ Date of Birth: _____

Mailing Address: _____

Phone: _____

3. Records to be Sealed

I request that the following conviction records be sealed:

☐ Prosecuting Attorney

☐ Sheriff's Department

Mailing Address: _____

☐ Colorado Bureau of Investigation *(Required)*

ATTN Identification-Seals, 690 Kipling St., STE 3000, Lakewood, CO 80215

☐ Law Enforcement: *(Agency Name)* _____

Agency Mailing Address:

Agency Case Number: _____

☐ Other: *(name)* _____

Mailing Address: _____

Arrest/Summons Number: *(from fingerprint card)* _____

Date of Arrest/Summons: _____

4. Offenses

a) List of Offenses

List the offenses or charges listed in the criminal records to be sealed:

Listed Offense	Misdemeanor or Felony

b) Were charges ever filed in court? *(yes or no)*

c) Did you successfully complete a diversion agreement? *(yes or no)*

d) Has the statute of limitations passed on all these charges? *(yes or no)*

e) Are you still being investigated for these charges? *(yes or no)*

5. Certificate of Service

On *(enter service date)* _____

I certify that I sent a copy of this document to all the agencies I checked in Section 3 by:

- ☐ Colorado Courts E-Filing. *(only available to lawyers)*
- ☐ Regular Mail, using the addresses entered in Section 3.
- ☐ Other: *(explain)* _____

6. Sign & Date

I request a hearing to present my request, and for an order sealing the arrest and criminal records I listed above, pursuant to C.R.S. § 24-72-704(1)(c)(II).

Print Your Name:

Signature: _____

Date: _____

Counsel Signature: *(if any)* _____

JDF 418	Order to Seal Arrest and Criminal Records (no charges filed)	
A. District Court Colorado County: <u>El Paso</u> Mailing Address: _____		<i>This box is for court use only.</i>
B. Parties to the Case Petitioner/Defendant: <u>Maria-Alejandra O'Shaughnessy-Whitfield</u>		
		C. Case Details Number: <u>2024CR0011882-SUPPLEMENTAL</u> Division: _____ Courtroom: _____

1. Background

The Court has read the Petition and any responses and reviewed the record and evidence presented at a hearing. The Court finds the Petitioner eligible to seal their arrest records. Alternatively, the Court also finds the petition is sufficient on its face, no objection has been filed, and that a hearing is not required under C.R.S. § 24-72-704(1)(c)(II).

2. Defendant's Information

- a) Full Name Maria-Alejandra O'Shaughnessy-Whitfield
- b) Birth Date: 1968-12-31
- c) Mailing Address: 1188 Upper Notch Crossing Road, Apartment 14B
 City: Colorado Springs ST: Colorado Zip Code: 80921-2214

3. Records to be Sealed

The records subject to this order include the arrest and criminal records information relating to and contained in:

- a) Law Enforcement Agency case number: _____
- b) Arrest number: *(from fingerprint card)* _____ Dated: _____

4. Court Orders

a) Records Sealed

The Records must be sealed immediately except for basic identifying information. If an inquiry is made, the Person in Interest and Criminal Justice Agency may reply that no such records exist.

b) Service

The Court's clerk shall provide a copy of this Order to the Colorado Bureau of Investigation (CBI) and every records custodian listed in the Petition.

c) Other Orders

So Ordered

By: _____
☐ Judge ☐ Magistrate

Dated: _____